

own property on fire, that crack was being smoked in the unit, etc.). (See SAC, ¶¶2, 7, 15, 21, 25-30, 34.) If true, these acts could be the sort of conduct that qualifies as “outrageous” in the eyes of a reasonable juror.

The motion fails to isolate all facts upon which plaintiff will rely in attempting to prove this cause of action. Accordingly, it is unclear whether there are factual disputes. The motion proffers that plaintiff has not sought counseling, but that is not sufficient to show plaintiff has not suffered emotional distress. Additionally, regardless of whether the “dust” in plaintiff’s unit was caused by soot or mold, or something else, the alleged actions by Eckert (in his capacity representing the other defendants) may be what plaintiff intends to advance at trial. Judgment as a matter of law is not permitted absent some certainty about what plaintiff will assert.

Accordingly, the motion papers fail to shift the burden to plaintiff to show triable disputes of fact and summary adjudication cannot be granted with respect to the fifth cause of action.

C. Material Factual Disputes

Still, even if the Baywoods defendants had shifted the initial burden, plaintiff’s evidence demonstrates there are material facts in dispute. (See SSUMF, Fact Nos. 13-17, 20, 24, and plaintiff’s response.) While plaintiff may not be able to credibly advance a “soot” theory at trial, investigation reports from defendants’ own investigations could permit plaintiff to advance a mold theory. (See Response to SSUMF, Additional Material Fact Nos. 25-33.)

V. **Joinder**

I. Joinder Not Properly Noticed.

The notice of joinder was untimely. It was to be served no later than February 22, 2026. (See Code Civ. Proc, § 473c, subd. (a)(2) [a motion for summary judgment requires an 81-day period of notice]; *Frazee v. Seely* (2002) 95 Cal.App.4th 627, 636-637 [addressing summary judgment statute then in effect and holding joinder due at same time as motion].) Eckert filed and served his joinder on April 24, 2026 which did not provide sufficient notice. It must therefore be denied.

II. Evidentiary Matters

In support of her Opposition to the joinder, plaintiff raises objections to Eckert’s evidence. In granting or denying a motion for summary judgment or summary adjudication, the Court need rule only on those objections to evidence that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c (q).) Accordingly, the Court declines to rule on plaintiff’s objections.

19. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
HEARING IN RE: JOINDER TO BAYWOODS HOMEOWNERS ASSOCIATION & HOMEOWNERS
MANAGEMENT CO., LLC'S MSJ
FILED BY: ECKERT, DAVID
TENTATIVE RULING:

Please see Line 18 above.

20. 9:00 AM CASE NUMBER: N22-1091
CASE NAME: COMMUNITIES FOR A BETTER ENVIRONMENT VS. COUNTY OF CONTRA COSTA